



CHAPTER 19.

An Act to amend the law relating to merchant shipping for the purpose of enabling effect to be given to an international agreement for establishing a system of observation of the Spanish frontiers.
[19th March 1937.]

A.D. 1937.
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WHEREAS His Majesty's Government in the United Kingdom have, by an agreement (hereafter referred to as "the observation agreement") embodied in a resolution adopted on the eighth day of March nineteen hundred and thirty-seven by the International Committee for the application of the agreement regarding non-intervention in Spain, agreed with the Governments of certain other countries to establish in the manner provided in the observation agreement, unless otherwise amended or determined, a system of observation of the Spanish frontiers for the purpose of ascertaining whether the agreement regarding non-intervention in Spain is being effectively observed :

And whereas the said system, under the terms of the observation agreement, is to be carried into effect by a body referred to therein as "the International Board for Non-intervention in Spain" and by certain officers, who are referred to in the observation agreement and in this Act as "the chief administrator", "administrators", "deputy administrators" and "observing officers" ;

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And whereas, in order to enable effect to be given to the said agreement, it is expedient to make such amendments of the law relating to merchant shipping as are hereafter contained in this Act :

Now, therefore, be it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Provision
as to
observing
officers.

1 Edw. 8.
& 1 Geo. 6.
c. 1.

1.—(1) No ship to which the Merchant Shipping (Carriage of Munitions to Spain) Act, 1936 (hereafter in this Act referred to as “ the Act of 1936 ”) applies and which is bound to a port or place in Spanish territory shall enter any waters adjacent to Spanish territory unless she has first proceeded to the prescribed place and there embarked such observing officers as may be deputed in that behalf by the administrator at that place :

Provided that—

- (a) a ship shall not be deemed to have contravened the foregoing provisions of this subsection by reason only that she has been compelled to enter waters adjacent to Spanish territory, either in order to reach the prescribed place, or by stress of weather or any other circumstance which neither the master nor the owner of the ship could have prevented or forestalled ; and
- (b) there may, by agreement between the master or owner of any ship and the chief administrator or the administrator at the prescribed place, be substituted for the prescribed place, in relation to that ship while on the voyage on which she is then engaged, such other place as may be so agreed ; and
- (c) the administrator at the prescribed place may, if it appears to him that he has for the time being an insufficient number of observing officers available for embarkation on any ship, exempt that ship from the provisions of this subsection while on the voyage on which she is then engaged.

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(2) Any observing officers so embarked on any such ship shall be entitled to remain on board the ship until disembarked in the manner provided in the next following subsection.

(3) When any ship to which the Act of 1936 applies, having observing officers on board in pursuance of this Act, leaves a port or place in Spanish territory bound to any port or place not in Spanish territory, she shall proceed to the prescribed place, taking the shortest available route thereto unless otherwise agreed between the master or owner of the ship and the administrator who deputed the observing officers on board the ship, and shall there disembark the said officers :

Provided that the said administrator may substitute another place for the prescribed place, so, however, that, without the consent of the master or owner of the ship, no such substitution shall be made which would increase the length of the ship's intended voyage by more than fifty sea miles.

(4) If any ship to which the Act of 1936 applies contravenes or fails to comply with the foregoing provisions of this section, the master of the ship shall be guilty of a misdemeanour, and the owner of the ship shall also be guilty of a misdemeanour if he is privy to the contravention or failure.

(5) The Board of Trade may on the application of the owner and with the consent of the authority, by licence exempt any ship, being a ship which is shown to the satisfaction of the Board of Trade to be regularly engaged in carrying goods or passengers to or from Spanish territory, from the foregoing provisions of this section on the following conditions, namely :—

- (a) that the ship does not, except with the consent of the chief administrator, proceed to sea from any port or place without having on board such observing officers as may be deputed from time to time in that behalf by the chief administrator ; and
- (b) that the owner of the ship pays to the authority on demand such additional expenses as may from time to time be certified by the Board of

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Trade to have been incurred by the authority by reason of the ship complying with the condition aforesaid, instead of complying with the said provisions of this section.

The Board of Trade may at any time, and shall at the request of the authority or the owner of the ship, cancel any licence granted under this subsection.

If any ship while exempt under this subsection fails to comply with the condition specified in paragraph (a) of this subsection, the master of the ship shall be guilty of a misdemeanour, and the owner of the ship shall also be guilty of a misdemeanour if he is privy to the failure to comply with the condition.

(6) An observing officer carried in a ship in pursuance of this Act shall, while on board the ship, be entitled to be provided with subsistence and accommodation, and to require signals to be made and to require messages to be sent by wireless telegraphy, in accordance with regulations made under this section, and also to exercise the following powers—

- (a) he may at any reasonable time require the master to produce any documents and furnish any information in his possession relating to any cargo destined for Spanish territory which is being carried in the ship;
- (b) he may, if he has reasonable grounds for suspecting that the contents of any package carried in the ship do not correspond with the particulars shown in the documents produced to him, or if the description of the contents of any package shown in those documents, taken with any description thereof shown on the package, is insufficient to enable him to discharge his duties under the observation agreement, require the master to cause the package to be opened for his inspection immediately before it is discharged from the ship;
- (c) he may at any reasonable time require the master to produce the agreement with the crew and any other documents in his possession relating to a member of the crew;

- (d) he may at any reasonable time, in the presence of the master or an officer of the ship authorised in that behalf by the master, require any passenger to produce his passport and require any passenger or member of the crew to state whether he proposes to disembark at a port or place in Spanish territory and, if so, his reasons for so disembarking; A.D. 1937.
- (e) he may be present at the unloading of any goods and the disembarkation of any persons at any port or place in Spanish territory or in the waters adjacent to Spanish territory:

and if the master of the ship or any other person on board the ship fails to do anything duly required of him by an observing officer under this subsection, or obstructs such an officer in the exercise of his powers under this subsection, or, being duly required by such an officer to furnish any information or make any statement, furnishes information or makes a statement which he knows to be false, he shall be liable to a fine not exceeding one hundred pounds.

(7) Every ship to which the Act of 1936 applies having observing officers on board in pursuance of this Act, or being engaged on a voyage on which she has been exempted by an administrator from the provisions of subsection (1) of this section under the proviso thereto, shall, while in waters adjacent to Spanish territory, display the prescribed signals; and if in those waters any such ship, having any such officers on board or being so engaged, fails to display the prescribed signals or, having no such officers on board and not being so engaged, displays the prescribed signals, the master of the ship shall be liable to a fine not exceeding one hundred pounds.

(8) The Board of Trade may make regulations—

- (a) as to the subsistence and accommodation to be provided for observing officers on ships to which the Act of 1936 applies and as to the powers of such officers to require signals to be made and to require messages to be sent by wireless telegraphy;
- (b) as to the payments to be made by the authority to the owners of such ships in respect of

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the subsistence provided for observing officers and in respect of tolls, dues, rates or charges of any kind incurred by such ships by reason only of their entering or using a port solely for the purpose of embarking or disembarking such officers, and as to the payments (if any) to be so made in respect of the accommodation provided for such officers and the signals and messages required to be made and sent by them;

- (c) prescribing the signals to be displayed for the purpose of the last foregoing subsection;
- (d) prescribing, according to the voyages on which they are for the time being engaged, the places to which, subject to the provisions of this section, such ships are to proceed for the purpose of embarking and disembarking observing officers in pursuance of this Act;

and for the purpose of any provision of this section the expression "the prescribed place," in relation to a ship engaged on any voyage, means the place specified in relation to that voyage in the regulations applicable for the purpose of that provision.

(9) For the purpose of any enactment which defines a passenger steamer by reference to the number of passengers carried, an observing officer carried in any ship, whether British or foreign, in pursuance of this Act or the observation agreement shall not be deemed to be a passenger.

Powers of
naval
officers of
certain
countries.

2.—(1) An officer of a ship of war which fulfils the conditions hereafter specified in this section may exercise the following powers as respects ships to which the Act of 1936 applies while they are within waters adjacent to Spanish territory, that is to say—

- (a) he may go on board the ship and for that purpose may require the ship to stop;
- (b) he may require the master to produce the certificate of registry of the ship and the clearance of the ship from its last port of call;

- (c) he may require the master to state whether any observing officers are on board the ship, and to allow him to interview any such officers stated by the master to be on board. A.D. 1937.
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(2) The conditions which a ship of war must fulfil in order to entitle an officer thereof to exercise the foregoing powers shall be as follows:—

- (a) the ship must be a ship of war of one of such Powers as may be declared, by an order for the time being in force under this section, to have been entrusted under the observation agreement with observation duties in the waters adjacent to Spanish territory;
- (b) the ship must be in such of the said waters as may be so declared to have been placed under the observation of the Power to which the ship belongs;
- (c) the ship must be displaying such signals as may be so declared to be required by the said agreement to be displayed by ships of war engaged in the said duties.

(3) Any order under this section shall be made by the Secretary of State, and may be revoked or varied by a subsequent order made by the Secretary of State.

(4) The powers conferred by subsection (1) of this section, if and so far as they are conferred on officers of His Majesty's ships of war, shall be in addition to and not in derogation of any other powers conferred upon them by any enactment, and may be exercised as respects any ship of a country the Government of which is a party to the observation agreement as well as respects ships to which the Act of 1936 applies.

(5) If any ship to which the Act of 1936 applies, being duly required under this section to stop, fails to comply with that requirement, the master of the ship shall be guilty of a misdemeanour, and if the master of any such ship fails to produce any document or make any statement which he is duly required to produce or make under this section, or if any person on board any such ship obstructs any officer in the exercise of his powers under this section, he shall be liable to a fine not exceeding one hundred pounds.

A.D. 1937.

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 Power by
 Order in
 Council to
 give effect
 to amend-
 ments of
 agreement
 and
 arrange-
 ments made
 in pur-
 suance
 thereof.

3.—(1) His Majesty may make such Orders in Council as appear to him to be necessary or expedient for the purpose of giving effect to any arrangements made in pursuance of the provisions of the observation agreement relating to merchant shipping or to any further agreement amending or supplementing those provisions, and any such Order may contain provisions for the imposition by summary process or otherwise of penalties in respect of breaches of the Order and provisions for the amendment of this Act or any other enactment relating to merchant shipping.

(2) Any Order in Council made under this section may be varied or revoked by a subsequent Order in Council.

(3) Any Order in Council made under this section for giving effect to any further agreement amending or supplementing the observation agreement shall cease to have effect at the expiration of a period of twenty-eight days from the date when the Order is made, unless before the expiration of that period each House of Parliament has by resolution approved the Order, but without prejudice to the validity of anything previously done thereunder or the making of a new Order:

Provided that in reckoning any such period of twenty-eight days no account shall be taken of any time during which Parliament is dissolved or prorogued or during which the Commons House is adjourned for more than four days.

Short title,
 construc-
 tion, inter-
 pretation,
 extent,
 commence-
 ment and
 duration.

4.—(1) This Act may be cited as the Merchant Shipping (Spanish Frontiers Observation) Act, 1937.

(2) This Act and the Merchant Shipping Acts, 1894 to 1936, shall be construed as one and may be cited together as the Merchant Shipping Acts, 1894 to 1937.

(3) For the purposes of this Act—

(a) references to the administrator at a place shall, in a case where there is no administrator at that place, be construed as references to the deputy administrator at that place;

(b) the expression "the authority" means such body as may be certified by the Board of

Trade to be the body entrusted by the International Board for Non-intervention in Spain with the functions of the authority under this Act or, if no such certificate is given, the said International Board. A.D. 1937.

- (c) references to an owner of a ship shall include references to a charterer;
- (d) the expression "Spanish territory" includes the Spanish zone of Morocco, but shall not, until such date as the Board of Trade may by order appoint, include the Canary Islands;
- (e) the expression "waters adjacent to Spanish territory" means any part of the sea within ten sea miles from any point on the coast of any Spanish territory.

(4) This Act shall extend to all those parts of His Majesty's dominions and other countries to which the Act of 1936 extends.

(5) This Act shall come into force on such date as the Board of Trade may by order appoint, and different dates may be appointed in relation to different ships and different provisions of this Act.

(6) This Act shall continue in force until His Majesty by Order in Council is pleased to declare that it is no longer necessary or expedient that it should continue in force :

Provided that on the expiration of this Act subsection (2) of section thirty-eight of the Interpretation Act, 1889 (which relates to the effect of repeals), shall apply as if this Act had been repealed by another Act.

Printed by EYRE AND SPOTTISWOODE LIMITED

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